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California lawmaker faces recall over gas tax vote

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Author: DON THOMPSON Associated Press | Section: News, Elections | 707 Words
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LOS ANGELES (AP) — The Orange County-area state senator who voted to raise gas taxes could be out of a job after Tuesday's primary election, where voters sorted through a recall contest and several legislative races colored by sexual harassment allegations.

The election decides which candidates will square off in November for all 80 state Assembly seats and half of the 40 Senate seats. The top two vote-getters in primary races, no matter their political party affiliation, head to the November general election.

With millions of votes still to be counted, many of the races may not be decided for days.

RECALL ELECTION

With about 43,000 votes counted, nearly two-thirds of voters favored recalling Democratic Sen. Josh Newman of Fullerton over his vote last year to increase fuel and vehicle taxes to raise about $5 billion a year for road repairs.

Newman narrowly won the traditionally Republican Orange County-based district in the 2016 election, and both parties saw him as vulnerable.

Replacing him with a Republican would keep Senate Democrats below a two-thirds supermajority. More than a third of voters were supporting Newman's 2016 Republican opponent, former Assemblywoman Ling Ling Chang, to replace him.

A Republican-backed effort to repeal the tax increase is likely to be on the November ballot, and the Newman recall election is an early test of where voters stand.

Carl DeMaio, chairman of Reform California and a sponsor of the recall said in a statement that "No amount of special interest money could save Josh Newman because voter anger over the gas and car tax hikes is so intense."

Even a late endorsement by former presidential candidate and independent Vermont Sen. Bernie Sanders wasn't helping Newman. Sanders recorded a 30-second Facebook ad urging voters to back Newman while praising his support for single-payer health care, education, the environment and immigrant rights.

SEXUAL MISCONDUCT

Tony Mendoza resigned his Senate seat in February rather than face a rare expulsion vote, one of three state lawmakers who resigned this session over sexual misconduct allegations.

Voters were leaning against re-nominating him for his old seat.

The Democrat from Artesia was running again for his seat while rejecting a finding by outside investigators that he likely engaged in unwanted flirtatious or suggestive behavior with six women.

Republican leaders backed two-time Assembly candidate Rita Topalian, who had about a third of the vote. Montebello Mayor Vanessa Delgado, a Democrat, was in second place. Voters were choosing from crowded but slightly different fields while selecting the top two candidates for an Aug. 7 special runoff election to fill the vacancy, and for the November general election.

Meanwhile, two sitting legislators are seeking re-election despite sexual misconduct allegations.

Assembly investigators did not substantiate a claim that Democratic Assemblywoman Cristina Garcia of Bell Gardens groped a staff member who worked for another lawmaker in 2014. But investigators said she frequently used vulgar language, which Assembly Speaker Anthony Rendon said constituted sexual harassment.

She was in line to be one of the top two candidates heading to the November election.

Unions and a charter school group mounted an aggressive campaign to unseat her, which her campaign called payback for her supporting traditional public schools and clean air legislation. Garcia faced six Democrats and one Republican for two spots in the November general election.

Central Valley Republican Assemblyman Devon Mathis of Visalia faced a likely same-party challenge from Visalia Mayor Warren Gubler and rancher Jack Lavers after the Tulare County Republican Central Committee sought his resignation over alleged inappropriate behavior including sexual misconduct. He denied the allegation and Sacramento police found no evidence to support a criminal charge, but his former chief of staff sued Mathis and the Assembly while repeating the claim in April. Also running is Democratic Tulare city councilman Jose Sigala.

SPECIAL ELECTIONS

Voters were choosing new representatives for two Democratic-leaning Los Angeles County seats vacated when Assemblymen Matt Dababneh and Raul Bocanegra resigned following sexual misconduct allegations. The winners of Tuesday's contests will join the Assembly immediately to serve out of the rest of the terms through November.

Special primary elections in April nominated Democrat Luz Rivas and Republican Ricardo Benitez to replace Bocanegra, and Democrat Jesse Gabriel and Republican Justin Clark to replace Dababneh.

The two Democrats were leading in early returns.

Voters were also picking candidates to appear on the November ballot for the next legislative term.

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